

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MEGAN NIENHUIS JOHNSON,

Petitioner

VS.

MATTHEW ERIC JOHNSON,

Respondent

) Case Number: FDI-26-803108

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Megan Nienhuis Johnson (Wife) and Respondent Matthew Eric Johnson (Husband). There are no minor children subject to this proceeding.
- 2) On 6/4/26, Wife filed a Petition for Dissolution. Wife states that the parties married on 10/20/12 and separated on 7/25/25 for a marriage of 12 years 9 months.
- 3) On 6/23/26, Wife filed a Request for Order seeking temporary spousal support of \$1,500 per month. Wife states she believes that Husband's gross monthly income is about \$5,617.50 and that he nets a surplus of \$4,256.08 per month.
- 4) On 6/23/26, Wife filed an Income and Expense Declaration.
- 5) On 6/23/26, Wife filed a Declaration Statement of Support Calculations.
- 6) On 7/13/26, Wife filed a Declaration in Support of Request for Order for Spousal Support (Index of Evidence).
- 7) On 7/22/26, Husband filed a Response and Request for Dissolution. Respondent states the date of marriage is 10/20/12 and agrees that the parties were married for 12 years 9 months.

1 8) On 8/5/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order.

2 Husband states that he is unable to pay temporary spousal support because he was laid off from
3 his job on 7/1/26 and has not yet found new employment.

4 9) On 8/5/26, Husband filed an Income and Expense Declaration indicating he receives \$1,950 in
5 unemployment compensation.

6 **B. Findings and Order**

7 1) "Awards of temporary spousal support rest within the broad discretion of the trial court and may
8 be ordered in any amount subject only to the moving party's needs and the other party's ability to
9 pay." See *Marriage of Murray* (2002) 101 Cal.App.4th581.

10 2) Here, Wife submitted documentary evidence of her need and Husband's past ability to pay;
11 however, Husband states, under penalty of perjury, that he was laid off from his job as of 7/1/26
12 and incurred significant legal debt due to a DUI charge. Wife did not present any conflicting
13 evidence of Husband's current ability to pay.

14 3) As such, the Court finds good cause to **CONTINUE Wife's request for temporary spousal**
15 **support to 10/8/26 at 9 AM in Dept. 403.**

16 4) At least 10 days in advance of the hearing, Husband shall provide documentary evidence that he
17 was laid off from his job as of 7/1/26.

18 5) The Court reserves jurisdiction over temporary spousal support retroactive to 6/23/26 (i.e., the
19 filing date of Wife's Request to Order).

20 6) The Court will prepare the Findings and Order After Hearing.
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